UNITED STATES OF AMERICA

BEFORE THE

FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads)	Docket No. RM26-4-000
to the Interstate Transmission System)	

RESPONSIVE COMMENTS OF MAVEN SOLUTIONS REGARDING THE SUPPLEMENTAL COMMENTS OF CONSTELLATION ENERGY GENERATION, LLC

INTRODUCTION

Maven Solutions submits these responsive comments regarding the Supplemental Comments filed by Constellation Energy Generation, LLC on June 5, 2026, proposing Load-Contingent New Capacity at Existing Plants ("LCEP") Service.[1] Maven Solutions previously submitted a community-development scoring framework into this docket.[2]

These comments address what Constellation's filing actually proposes beneath its public-interest framing: a tariff-enabled mechanism to convert incumbent control of existing generation Points of Interconnection into a gatekeeping product for the nation's fastest-growing source of electricity demand.[3] The proposal does this while externalizing reliability risk through unproven protection assumptions and externalizing community harm by omitting every dimension of host-community impact from its design.

The analytical traditions of antitrust law, structural regulation, and environmental justice converge on the same conclusion: LCEP as filed is not a neutral efficiency reform.

[1] Supplemental Comments of Constellation Energy Generation, LLC, Docket No. RM26-4-000 (June 5, 2026) ("Constellation Supplemental Comments").

[2] Maven Solutions, Community-Development Scoring Framework, Docket No. RM26-4-000, Submission ID 1755084 (May 20, 2026).

[3] Constellation Supplemental Comments at 1.

It is a market-structure intervention that creates a new monopoly chokepoint at the physical layer of the nation's electricity infrastructure.[4] The Commission's obligation under FPA § 206 is to adopt a replacement rate that is just and reasonable—not one that substitutes incumbent preference for open access, or speed for accountability.[5]

I. LCEP CREATES A MONOPOLY CHOKEPOINT AT THE POINT OF INTERCONNECTION

A. The Incumbent Generator Becomes the Gatekeeper

Constellation proposes that LCEP requests may be made by the existing generator, its affiliates, or by an unaffiliated customer "with the explicit consent of the existing Generating Facility."[6] That sentence is the structural core of the proposal. Everything else—the thermal-envelope analysis, the Surplus Interconnection analogy, the speed-to-power narrative—is scaffolding around a single economic fact: the owner of an existing generation Point of Interconnection would control who gets expedited access to the transmission system for large-load interconnection.

This is a bottleneck monopoly problem. The Point of Interconnection is a physical facility that cannot be replicated. The studies conducted for the existing generator are sunk investments that benefit the incumbent. The interconnection rights attached to the POI are contractual assets the incumbent controls. When Constellation asks FERC to create LCEP Service, it is asking the Commission to formalize the incumbent's gatekeeping power over a scarce, non-replicable asset—and to do so through a tariff mechanism that would apply across all Transmission Providers.

The pattern is not new. Policymakers from the railroad era to the telecommunications era to the digital platform era have recognized that allowing a dominant intermediary to control bottleneck infrastructure while also competing in adjacent markets creates a structural conflict of interest—incentivizing discrimination, self-preferencing, and the

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[4]See Assistant Attorney General Jonathan Kanter, Remarks at Keystone Conference on Antitrust, Regulation & the Political Economy (Nov. 2023) ("Our enforcement program is laser focused on breaking up existing monopoly chokepoints across the economy, and preventing new ones before they arise.").

[5]16 U.S.C. § 824e(a)–(b).

[6]Constellation Supplemental Comments at 13.

extraction of monopoly rents from those who must use the infrastructure.[7] The cycle by which open networks are captured and closed by incumbent monopolists is well documented.[8] LCEP would inaugurate this cycle in electricity interconnection.

B. Consent Is Control

The consent requirement is not a procedural formality. It is the mechanism through which the incumbent monetizes its bottleneck position. A data-center developer that needs power within two years—and the record shows interconnection delays of seven to ten years through standard channels—faces a choice: negotiate with the incumbent generator on the incumbent's terms, or wait in the queue. The incumbent's consent becomes the price of speed.

That gives the incumbent leverage in site deals, power purchase agreements, tolling structures, co-location arrangements, and any other bilateral negotiation. The incumbent is not merely selling electrons. It is selling time—and it controls who gets access to the fast lane.

FERC recognized this dynamic in Order No. 845 when it specified that Surplus Interconnection Service does not create a new property right and does not restrict another customer's ability to seek interconnection service directly from the Transmission Provider.[9] LCEP, by contrast, would effectively create a new property right: the right to grant or withhold consent for expedited access at the incumbent's POI. Unless FERC imposes structural safeguards—open, transparent, independently administered access rules with non-discrimination requirements—LCEP would constitute the kind of tariff-enabled gatekeeping that the Federal Power Act was designed to prevent.

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[7] See Lina M. Khan, The Separation of Platforms and Commerce, 119 Colum. L. Rev. 973 (2019) (analyzing structural separations applied to railroads, telecommunications, and banking where dominant intermediaries integrated into adjacent commerce).

[8] See Tim Wu, The Master Switch: The Rise and Fall of Information Empires (2010) (documenting the recurring pattern by which open networks are captured and closed by incumbent monopolists); Tim Wu, The Curse of Bigness: Antitrust in the New Gilded Age (2018).

[9] Order No. 845, 163 FERC ¶ 61,043, at PP 467, 474, 482, 486–88 (2018).

C. The Open-Access Principle Is at Stake

The Commission's open-access transmission policy, grounded in Orders No. 888 and 889 and reinforced through every subsequent interconnection reform, rests on a foundational principle: the transmission system is a public good, and access to it must be provided on terms that are just, reasonable, and not unduly discriminatory or preferential. LCEP challenges that principle by converting a subset of the public transmission system—the Points of Interconnection at existing generation sites—into privately gated access points.

This is not hypothetical. Constellation is the nation's largest owner of nuclear generating capacity and among the largest owners of overall generation capacity in organized wholesale markets. LCEP, if adopted as proposed, would give Constellation and other large incumbent generators a competitive advantage that smaller generators, independent developers, and unaffiliated load customers could not replicate—because they do not own the POIs.[10]

II. THE RELIABILITY CLAIM SUBSTITUTES A STATIC NETTING IDENTITY FOR DYNAMIC PROOF

A. The Omitted Contingency

Constellation's Attachment A presents four scenarios showing that LCEP's net power flows stay within studied conditions.[11] It omits the decisive fifth scenario: the paired load drops while new generation remains online. Using Constellation's own numbers—1,745 MW existing plus 800 MW new generation minus zero load—the result is 2,545 MW pushing through lines studied for 1,745 MW. An 800 MW export excursion above the studied condition.

[10]See Pac. Gas & Elec. Co., 115 FERC ¶ 61,193, at P 36 (2006) ("[I]nterconnection is part and parcel of transmission of electric energy in interstate commerce.").

[11]Constellation Supplemental Comments, Att. A at 3 (Scenario Table).

Constellation buries this in a footnote: “mechanisms similar to those used in surplus or hybrid interconnection would be in place.”[12] That footnote is doing the structural work of the entire reliability argument. It is not a protection design. It is not a clearing-time analysis. It is not a failure-mode study. It is a promise—and the Commission does not set just and reasonable rates on promises.

B. NERC’s Record Contradicts Constellation’s Premise

The scenario Constellation omits has already occurred. On July 10, 2024, a 230 kV fault caused approximately 1,500 MW of data-center load to drop simultaneously. Operators did not anticipate the magnitude of loss. Approximately 1,260 MW did not return for hours.[13][14][15] NERC found that the grid has not historically experienced load losses of this magnitude and that existing planning for large generation losses does not translate to sudden large load losses.

Constellation’s filing states that “a load outage is not typically planned for currently and therefore should not need to be a part of the LCEP process studies.”[16] That sentence was written one month after NERC issued a Level 3 Essential Action Alert—its highest-urgency notification—requiring registered entities to address computational load modeling, studies, instrumentation, commissioning, operations, protection, and control.[17] NERC’s March 2026 Gap Assessment concluded that existing Reliability Standards are “inadequate to address the risks posed by emerging large loads.”[18] The Reliability Guideline, published May 2026, identifies gaps across interconnection,

[12] Constellation Supplemental Comments, Att. A at 3 n.* (“To ensure that the total generation does not exceed the studied values, if the new load is reduced or drops, mechanisms similar to those used in surplus or hybrid interconnection would be in place.”).

[13] NERC, Incident Review: Integration of Large Loads that are Sensitive to Voltage Disturbances into the Bulk Electric System (Jan. 8, 2025) (“NERC Incident Review”).

[14] NERC Incident Review at 1–2.

[15] NERC Incident Review at 2–3.

[16] Constellation Supplemental Comments, Att. A at 5.

[17] NERC, Level 3 Essential Action Alert: Computational Load Modeling, Studies, Instrumentation, Commissioning, Operations, Protection, and Control (May 4, 2026) (“NERC Level 3 Alert”).

[18] NERC Large Loads Working Group, Assessment of Gaps in Existing Practices, Requirements, and Reliability Standards for Emerging Large Loads (March 2026) (“NERC Gap Assessment”).

planning, resource adequacy, balancing, ride-through, stability, power quality, security, resilience, and load modeling.[19][20]

The reliability authority is telling the industry to do more. Constellation is asking the Commission to require less. Those positions cannot be reconciled.

C. A Thermal-Flow Table Is Not a Reliability Study

Grid interconnection requires analysis of voltage performance, reactive power, short-circuit/fault duty, transient stability, dynamic behavior, protection coordination, frequency response, ride-through, relay settings, restoration, and affected-system impacts.[21] Constellation's Attachment A proves, at most, a stylized thermal-envelope argument using a static table with illustrative numbers. It does not prove dynamic reliability. A megawatt netting table cannot substitute for validated dynamic models of computational loads with UPS systems, backup generation, power electronics, vendor-specific control logic, and autonomous protective behavior.[22]

III. THE PROPOSAL SHIFTS COSTS AND RISKS ONTO CAPTIVE RATEPAYERS

Constellation asserts that LCEP avoids increasing costs to other customers. That assertion is unsupported. The filing does not demonstrate who pays for the protection systems, remedial action schemes, telemetry, metering, dynamic fault recorders, communications, operator training, reserve requirements, voltage and reactive support, harmonics mitigation, restoration support, affected-system studies, network upgrades discovered through dynamic analysis, enforcement administration, or system impacts from protection misoperation.[23]

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[19]NERC, Reliability Guideline: Risk Mitigation for Emerging Large Loads (approved Apr. 30, 2026; published May 2026) ("NERC Reliability Guideline").

[20]NERC Gap Assessment at 5–11.

[21]See NERC FAC-002-4; NERC TPL-001-5.1; NERC MOD-032-1.

[22]See NERC Incident Review at 5–6 (recommending ramp-rate requirements and controlled reconnection).

[23]ANOPR at ¶¶ 22–26.

This matters because existing ratepayers are captive. They did not choose to host data centers at their local power plant. They cannot switch providers. They bear the costs of grid reinforcement, the environmental burden of continued and expanded industrial operations, and the fiscal impact of tax abatement arrangements negotiated between the generator, the data-center operator, and the local jurisdiction—often without meaningful public participation.[24]

The Commission should apply the principle that large loads must contribute fairly to the costs of maintaining a stable and sustainable grid and that existing ratepayers must be protected from cost shifts.[25] "No new thermal upgrade in a stylized case" is not the same as "no cost to other customers." Every unaccounted cost that LCEP fails to assign to the applicant is a cost that falls on the ratepayer. The Commission should not adopt a replacement rate that treats cost allocation as an afterthought.

LCEP's structural fragility compounds this concern. Constellation acknowledges that LCEP service is "inherently derived from the original existing generator's Interconnection Service" and would terminate upon the generator's retirement.[26] A service that disappears when the host generator retires is not infrastructure. It is a monetization strategy for a depreciating asset—and the stranded-cost risk, when that asset retires, falls on the communities and ratepayers left behind.

IV. THE COMMUNITIES WHO BEAR THE BURDEN ARE ABSENT FROM THE PROPOSAL

The word "community" does not appear in the body of Constellation's filing. That is not an oversight. It is a design choice. LCEP is engineered to move fast by moving past the people who live nearest to the infrastructure.

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[24]See Earthjustice & Energy Futures Group, Report: Electricity Contracts for Data Centers and other Mega-load or Large-load Facilities (2024) (analyzing tariff structures to ensure large loads contribute fairly to grid costs while safeguarding ratepayer and environmental interests).

[26]Constellation Supplemental Comments at 12.

Existing power plant sites are not abstractions on a transmission map. They are places where people live, work, breathe, drink water, send children to school, and pay taxes. These communities already bear the environmental, health, noise, water, and land-use impacts of hosting generation facilities. LCEP proposes to add industrial-scale data center load—with its own water demands, thermal discharge, noise, traffic, and fiscal dynamics—without any mechanism for those communities to know what is coming, negotiate terms, or hold anyone accountable.

Environmental justice principles require that communities disproportionately burdened by industrial infrastructure receive heightened scrutiny, meaningful engagement, and enforceable protections—not an expedited pathway that bypasses the processes through which those protections might surface. Existing power plant sites are disproportionately located in communities with environmental justice concerns. Adding large computational load to these sites without screening, disclosure, or community engagement is not speed to power. It is speed past people.

The scale of community resistance to data center siting is itself evidence that the current process is failing. Maven Solutions' research documents 268 local opposition groups across 37 states, representing over 360,000 members, coordinated through organizations including the Coalition for Responsible Data Center Development.[27] These groups did not form because interconnection was too slow. They formed because communities were not included, not informed, and not protected. Creating a faster pathway that replicates this exclusion will not resolve the opposition. It will deepen it.

Good-actor precedent proves that speed and accountability are compatible. Applied Digital's Ellendale Acres development in North Dakota—operating under the R-WISH program with housing construction, water stewardship, and workforce partnerships built into project development—demonstrates that community-development commitments can be delivered concurrent with, not after, project deployment. The question is not whether speed matters. It does. The question is whether the Commission

[27] Maven Solutions, Polar-Grade Comprehensive Brief v12 (May 2026) (documenting 268 local opposition groups across 37 states, representing over 360,000 members).

will embed the lesson of that precedent into the replacement rate, or allow LCEP to create a new class of burden without a new class of obligation.

V. STRUCTURAL CONDITIONS FOR ANY EXPEDITED INTERCONNECTION PATHWAY

If the Commission includes LCEP or any comparable expedited pathway in its replacement rate, the following structural conditions are necessary to prevent the creation of a monopoly chokepoint, protect reliability, prevent cost-shifting, and ensure community accountability:[28]

> **1. Open-Access and Non-Discrimination:** The Commission must structurally separate the gatekeeping function from the incumbent's commercial interest. LCEP access rules must be open, transparent, and independently administered by the Transmission Provider. The incumbent generator's consent cannot function as a veto or a toll. Any entity meeting objective qualification criteria must be eligible on equal terms.
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> **2. Full Dynamic Contingency Study:** The omitted contingency—load drops while generation remains online—must be studied. All dynamic contingencies including generation loss, simultaneous voltage-sensitive load reduction, breaker failure, remedial-action-scheme failure, and communication-path failure must be modeled with validated dynamic representations of the computational load, UPS systems, and protection controls, consistent with NERC's Level 3 Alert.[29][30]
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> **3. Protection Demonstration, Not Protection Promise:** The applicant must provide a protection design basis with specified clearing times, failure-mode analysis, tested trip coordination, breaker-failure backup, communication-path redundancy, and commissioning test results. "Appropriate system protection will be in place" is a conclusion, not evidence.

[28]XO Energy Ma, LP v. FERC, 77 F.4th 710, 716 (D.C. Cir. 2023).

[30]NERC Level 3 Alert at 3–9.

4. Full Cost Allocation to the Applicant: All caused costs—studies, protection systems, remedial action schemes, telemetry, metering, communications, dynamic fault recorders, reserves, voltage and reactive support, harmonics mitigation, operator training, affected-system studies, and enforcement administration—must be borne by the LCEP applicant. Ratepayers must not be left on the hook.[31]

5. Power Quality, Harmonics, and Cyber-Physical Risk: Applicants must conduct power-quality and harmonic studies with mitigation responsibility assigned to the LCEP customer. All protection and control systems enforcing the no-export condition must undergo cyber-physical risk assessment.[32]

6. Community Impact Disclosure and Environmental Justice Screening: LCEP applicants must file a community impact assessment addressing water consumption, thermal discharge, workforce projections, fiscal impact including tax abatement arrangements, noise, traffic, housing, and environmental justice screening prior to processing. Communities must know what is coming before the interconnection studies are complete, not after.

7. Community Benefit Framework and Good-Faith Engagement: The pro forma LGIP should require demonstrated good-faith engagement with host-community stakeholders, including disclosure of community benefit commitments, as a condition of expedited processing.

8. Periodic Compliance Scoring: LCEP arrangements should be subject to periodic review using a standardized community-development scoring framework, such as the Polar-Grade Community-Development Standard submitted in this docket.[33]

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[32]NERC Gap Assessment at 8–11 (security, resilience, power quality gaps).

CONCLUSION

Constellation's LCEP proposal asks the Commission to solve a real problem—interconnection delay—by creating a new one: a tariff-enabled monopoly chokepoint at existing generation Points of Interconnection, with unproven reliability assumptions, unresolved cost allocation, and zero community accountability.

The proposal equates static net injection limits with dynamic system reliability—a category error that NERC's own 2026 record decisively refutes. It converts incumbent control of bottleneck infrastructure into a gatekeeping product for the nation's fastest-growing load class—a competition problem that the traditions of structural regulation were built to prevent. And it does all of this while rendering invisible the communities who will host the infrastructure, bear the burden, and have no seat at the table the proposal does not build.

The Commission's discretion in fashioning replacement rates is at its zenith.[34] That discretion should be exercised to ensure that speed to power does not come at the cost of open access, proven reliability, fair cost allocation, and community justice. LCEP should not be adopted as filed. At most, the Commission should consider a narrowly conditioned, independently studied, NERC-aligned pilot that denies expedited treatment unless the applicant proves dynamic reliability, bears all caused costs, submits to non-discriminatory access rules, and demonstrates enforceable community-development accountability.

Anything less is not a replacement rate. It is a fast lane for the few, paid for by the many.

WHEREFORE, Maven Solutions respectfully requests that the Commission condition any LCEP Service or comparable expedited interconnection pathway on the structural, reliability, cost-allocation, and community-development requirements described herein.

Respectfully submitted,

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